

NAPCS Unionization Research — State — Charter Sector Overview

Maine — NLRB Jurisdiction — May 2026

NAPCS Unionization Research • May 2026 • Template v8.0

Section 1: State Overview

State	Maine
Labor Board	NLRB — National Labor Relations Board — Region 1 (Boston)
Governing Law	National Labor Relations Act (NLRA). Baxter Academy is incorporated as a private nonprofit charter school under the Maine Charter School Commission — it is not a public employer and falls under NLRB, not MLRB. MLRB (Maine Labor Relations Board) governs traditional public employers only and does NOT apply to Baxter Academy.
Federal NLRB Jurisdiction	YES — NLRB Region 1 (Boston) is the sole applicable labor board for Baxter Academy. Case 01-RC-239165.
Right-to-Work	NOT a Right-to-Work State — Maine has no right-to-work statute. Maine is a private-sector state under NLRA jurisdiction for charter schools; union security provisions are available in CBA negotiations. (No right-to-work statute applies to ME charter schools.)
For-Profit Operator Status	For-profit EMO management contracts permitted under state law
Card-Check Available	NO — NLRB jurisdiction — secret ballot election required. No card-check available.
Registry Sweep	COMPLETE — April 2026 — 11 charter schools searched
Research Window	March–April 2026

Section 2: Charter Sector Landscape

Total charter schools in Maine: 11 (Charter School Registry v50 (NCES/ELSI 2024-25; 11 open ME charter schools as of May 2026)). Unionization census figures reflect confirmed organized schools as of the data currency date.

Category	Schools	% of Total	Notes
Total Unionized Charter Schools in Maine	1	9.1%	Baxter Academy for Technology and Science — the sole NAPCS-listed ME charter school. NLRB R1 jurisdiction. AFT/MEA/NEA.
Confirmed Union Schools	1	9.1%	Baxter Academy for Technology and Science. NLRB secret ballot election. AFT affiliation. Only NAPCS-listed ME charter school.
Total Open ME Charter Schools	11	100%	Source: Charter School Registry v50 (NCES/ELSI 2024-25). Previously cited total of 9 (Registry v5) was stale; corrected to 11. All 11 ME charter schools authorized by Maine Charter School Commission.

Charter Sector Enrollment

Total Charter Enrollment	2,717 students — 1.6% of state K–12 enrollment (167,309 total K–12 students)
Students in CMO/EMO-Affiliated Charter Schools	385 students in network-affiliated schools — 14.2% of total charter enrollment
Students in Organized	0 students documented

Charter Schools	
Data Sources	Charter enrollment: NCES ELSI 2024–25 / Charter School Registry v133. Total K–12 state enrollment: NCES ELSI 2024–25 (all public schools). Both figures from the same source and year.

Section 3: Charter Management Organizations & Education Management Organizations

Charter Management Organizations (CMOs) are nonprofit networks. Education Management Organizations (EMOs) are for-profit management companies. Data sourced from Charter School Registry v133. Union penetration reflects confirmed organized schools as of the data currency date.

CMO / EMO Name	Type	State Campuses	National Campuses [†]	Organized in State	Total Enrollment
Community Regional Charter School	CMO	3	3	—	385
TOTAL — All CMO/EMO Schools in Maine		3		0 organized schools in network-affiliated charters	

[†] National Campuses reflects total campuses operated by this network across all states, as reported in Charter School Registry v133. Provides context for networks operating in multiple states.

[‡] Network (type unclassified) = operator present in Charter School Registry v133 but not yet classified in CMO Reference data. Contact registry project to add classification for these records.

1 CMO (nonprofit). Approximately 8 schools operate independently with no CMO/EMO affiliation. Source: Charter School Registry v133.

Section 4: Legal Framework & Sector Overview

Findings are based on research as of May 2026.

1: Legal & Jurisdictional Framework National Labor Relations Act (NLRA). Baxter Academy is incorporated as a private nonprofit charter school under the Maine Charter School Commission — it is not a public employer and falls under NLRB, not MLRB. MLRB (Maine Labor Relations Board) governs traditional public employers only and does NOT apply to Baxter Academy. Maine is not a right-to-work state (Maine has no right-to-work statute. Maine is a private-sector state under NLRA jurisdiction for charter schools; union security provisions are available in CBA negotiations.). Charter schools in Maine are subject to NLRB jurisdiction as private employers (NLRB). Secret ballot NLRB election is the required organizing pathway. Card-check is not available.
2: Charter Sector Structure Maine operates 11 open-enrollment charter schools, enrolling approximately 2,717 students. 1 charter management organizations and education management organizations operate in Maine. The largest networks by campus count are Community Regional Charter School (3 campuses in state). Approximately 8 schools operate independently with no CMO or EMO affiliation. Network-level detail, including campus counts and total enrollment, appears in Section 3 above.

Section 5: Media Coverage & Public Stakeholder Positions

Press Coverage

Maine charter school labor relations have generated minimal press coverage, consistent with the state having only one NAPCS charter school and no contested organizing campaigns. The Maine Beacon (September 2019) provided contemporaneous coverage of the Baxter Academy 30-4 election vote confirming MEA/NEA representation. No subsequent

coverage of CBA negotiations or contract ratification has been identified. The small size of Maine's charter sector (9 schools total) and the absence of any other organizing activity makes further press coverage unlikely without a new organizing campaign.

Stakeholder Communications

The Baxter Academy Education Association is the MEA/NEA local affiliate at Baxter Academy. MEA (Maine Education Association) is the NEA-affiliated statewide teacher union covering most Maine public school educators. No public MEA communications specifically addressing Baxter Academy's contract or CBA terms have been identified. MEA records request recommended for contract details.

Legislative Context

Maine charter schools are private employers under NLRB jurisdiction (MLRB does not apply — Baxter Academy is a privately incorporated nonprofit). Maine has no state public-sector collective bargaining statute applicable to charter schools. NLRB Region 1 (Boston) has jurisdiction. Maine has no right-to-work law for private-sector employees, meaning union security provisions remain available in CBA negotiations.

Section 6: Contract & CBA Access Registry

NLRB public contracts portal. Direct PDF links may require a records request for full text.

School / Network	Union	CBA Status & Term	Contract Access
Baxter Academy for Technology and Science	Baxter Academy Education Association / MEA/NEA	Active Unknown — contact MEA (mea.org) or school HR	MEA (mea.org) or baxter-academy.org/contact